

Andhra Pradesh Energy University Act, 2017

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State of Andhra Pradesh - Act

Andhra Pradesh Energy University Act, 2017

ANDHRA PRADESH

India

Andhra Pradesh Energy University Act, 2017

Act 14 of 2017

Published on 11 May 2017

Commenced on 11 May 2017

[This is the version of this document from 11 May 2017.]

[Note: The original publication document is not available and this content could not be verified.]

Andhra Pradesh Energy University Act, 2017

(Act

No. 14 of 2017

)

Last Updated 31st July, 2019

[Dated 11.05.2017]

An Act to Establish and Incorporate a University at the State Level Mainly to Promote and Develop Energy Sector, With Focus on Renewable Energy and to Impart Vocational and Technical Education in Energy Field Through Campus Based Teaching and Distance Education Modes and to Provide for Matters Connected Therewith or Incidental Thereto.

Be it enacted by the Legislature of the State of Andhra Pradesh in the Sixty-eighth year of the Republic of India, as follows : -

1.

Short title and commencement.

(1)

This Act may be called the Andhra Pradesh Energy University Act, 2017.

(2)

It shall come into force on such date as the State Government may, by notification in the Andhra Pradesh Gazette;

2.

Definitions.

- In this Act, unless the context otherwise requires, -

(a)

"academic council" means the Academic Council of the University;

(b)

"academic staff" means such categories of staff as are designated as academic staff by the Ordinances;

(c)

"board of faculties" means the Board of Faculties of the University;

(d)

"department" means a Department of Studies;

(e)

"distance education system" means the system of imparting education through any means of communication such as broadcasting, telecasting, correspondence courses, seminars, contact programmes or the combination of any two or more such means;

(f)

"employee" means any person appointed by the University and includes teachers and other staff of the University;

(g)

"executive council" means the Executive Council of the University;

(h)

"finance committee" means the Finance Committee of the University;

(i)

"institution" means as academic institution maintained by the University;

(j)

"recognized institution" means an institution of higher learning recognized by the University;

(k)

"regulations" means the Regulations made by any authority of the University under this Act for time being in force;

(l)

"statutes" and "Ordinances" mean, respectively, the Statutes and Ordinances of the University for the time being in force;

(m)

"teachers of the University" means Professor, Associate Professors, Assistant Professors and such other persons as may be appointed for imparting instruction or conducting research in the University or in any Institution maintained by the University and who are designated as teachers by the Ordinances;

(n)

"university" means the Andhra Pradesh Energy University established and incorporated as a University under this Act;

(o)

"vice-chancellor" means Vice-Chancellor of the University;

3.

Establishment of the University.

(1)

There shall be established a University by the name of the Andhra Pradesh Energy University;

(2)

The headquarters of the University shall be at Anantapur.

(3)

The University may open additional campus centres beyond the initial campus in Anantapur.

(4)

The University may encourage to use technology extensively as part of its curriculum in line with modern pedagogic concepts.

(5)

The University may be permitted by the Government of Andhra Pradesh to conduct distance education programmes after satisfactory running for a period of five years and after satisfactory demonstration of quality and accreditation standards.

(6)

The University established under sub-section (1) shall be a body corporate having perpetual succession and a common seal and shall sue and be sued by the said corporate name.

(7)

In all suits and other legal proceedings by or against the University the pleadings, shall be signed and verified by Registrar and all processes in such suits and proceedings shall be issued to, and served on him.

4.

Objects of the University.

- The objects of the University shall be, -

(a)

to impart word class education, research and training in the field of Energy and allied area;

(b)

to provide a mix of academic programs and advanced research facilities for the development of human resources and innovative Energy solutions with global impact;

(c)

to promote research in the Energy sector by offering research intensive programs with state of art infrastructure and involvement of major industry players;

(d)

to impart skills for jobs across all levels of workforce in the Energy sector and develop an Energy talent hub;

(e)

to serve as the key knowledge resource for Energy Sector in the Country;

(f)

to develop Centres of Excellence (COE) in various areas of Energy Efficiency and Renewable Energy with state of art research infrastructure enabling innovations in the sector;

(g)

to collaborate with national and global institutions for offering programmes and creating capabilities for upgrading programmes in relation to domains of Renewable Energy Management and allied fields;

(h)

to promote consulting services to address policy, institutional framework, efficiency, technology and other sector specific challenges;

(i)

to establish linkages with leading Energy industry players and global academic institutions for knowledge transfer.

5.

Powers of the University.

- The University shall have the following powers, namely: -

(a)

to provide for instructions and research in such branches of learning as are relevant for furtherance of the objects of the University;

(b)

to grant, subject to such conditions as the University may determine, diplomas or certificates to, and confer degrees or other academic distinctions on the basis of examinations, evaluation or any other method of testing, on persons, and to withdraw any such diplomas, certificates, degrees or other academic distinctions for good and sufficient cause;

(c)

to confer honorary degree or other distinctions in the manner prescribed by the Statutes;

(d)

to institute and award fellowships, scholarships, studentships, medals and prizes;

(e)

to determine and establish academic curriculum each year as per the latest industry standards and modify the course content, as per the requirement or recommendations from industry, Academic council, Alumni body or any other institution of repute;

(f)

to organize and to undertake extra-mural studies, training and extension services;

(g)

to conduct innovative experiments in new methods and technologies in field of science, technology and management in relation to the domains of Energy and allied fields in order to achieve international standards of such education, training and research;

(h)

to make provision for research and advisory services and for that purpose to enter into such arrangements with other institutions, industrial or other organizations as the University may deem necessary;

(i)

to organize and conduct refresher courses, workshops, seminars and other programmes for teachers, evaluators and other academic staff;

(j)

to make special arrangements in respect of the residence, discipline and teaching of women students as the university may consider desirable;

(k)

to institute Professorships, Associate Professorships, Assistant professorships, and other teaching or academic positions, required by the University and to appoint persons to such Professorships, Associate Professorships, Assistant Professorships, or other teaching or academic positions;

(l)

to appoint persons working in any other university or organization as teacher of the University for a specified period;

(m)

to create administrative, ministerial and other posts and to make appointments thereto;

(n)

to collaborate and /or enter into a memorandum of understanding (MOU)/alliance with other national and international Universities, and acquire membership of bodies, authorities, or associations, in such manner and for such purpose as the University may determine by Statutes;

(o)

to establish, such centres and specialized laboratories, within Andhra Pradesh, as are, in the opinion of the University necessary for the furtherance of its objects;

(p)

to regulate the expenditure, manage the finances and maintain the accounts of the University independently;

(q)

to fix, demand and receive or recover fees and such other charges as may be prescribed by the Statutes;

(r)

to receive funds, movable and immovable properties from business, industry and other sections of society, national and international, to promote academic activity;

(s)

to purchase or take on lease or accept as gifts, bequests, legacies or otherwise any land or building or works which may be necessary or convenient for the purpose of the University and on such terms and conditions as it may think fit and proper and to construct or alter and maintain any such building or works;

(t)

to appoint and fix the pay structure of Advisory Body, Academic council members, Faculties and other supporting staff depending on the requirement as determined by the various councils of the University each year;

- (u)
to appoint and fix the pay structure, on contract or otherwise, of visiting Professors, Emeritus Professors, Consultants, Scholars and such other persons who may contribute to the advancement of the object of the University;
- (v)
to appoint and fix, with prior approval from the State Government, the pay structure of eminent personalities from industry and other leaders in various fields in the Executive council, and Academic council;
- (w)
to confer autonomous status on a Department, in accordance with the Statues;
- (x)
to determine standards of admission to the University which may include examination, evaluation or any other method of testing;
- (y)
to develop Centres of Excellence (COE) in various areas of Renewable Energy Management with state of art research infrastructure enabling innovations in the sector;
- (z)
to open new and additional departments as and when required based on academic and industry requirements;
- (za)
to supervise the residences of the students of the University and to make arrangements for promoting their health and general welfare;
- (zb)
to lay down conditions of service of all categories of employees including their code of conduct;
- (zc)
to regulate and enforce discipline among the students and the employees and take such disciplinary measures in this regard as may be deemed by the University to be necessary;
- (zd)
to make arrangements for promoting the health and general welfare of the employees;
- (ze)
to organize suitable distance education programmes;
- (zf)
to establish, maintain or recognize study Centres for the delivery of the distance education system in the manner laid down the by the Ordinances;
- (zg)
to provide for the preparation of instructional material including films, cassettes, tapes, video cassettes and other software in collaboration with various Open Universities and other institutions dealing with the distance education system;
- (zh)
to start consulting, advisory and research services in the effort to promote Renewable Energy research activities and also help make the University self-sustainable;
- (zi)
to explore and start internal revenue generation mechanisms like starting an electric power generating station, provide testing and certification services to meet the business needs of industry, opening a convention centres etc;
- (zj)
to share the revenue generated from the internal revenue generation mechanisms with the industry players as determined by the Executive Council;
- (zk)
to establish incubation centres, skill development centres etc., to promote research activities in the field of Energy focus or Renewable Energy;
- (zl)
to provide such lectures and instructions for and to grant such diplomas to field workers, and other persons, as the University may determine;
- (zm)

to borrow, with the approval of the Executive council, on the security of the property of the University, money for the purpose of the University;

(zn)

to borrow money from the Government of India, any State Government or any other agency;

(zo)

to accept grants or donations from the private industry players for the purpose of the University; and in return offer them Chair professorship or other Eminent position in various councils or naming rights in different establishments of the university Infrastructure, as applicable;

(zp)

to do all such other acts and things as may be necessary, incidental or conducive to the attainment of all or any of its objects.

6.

Jurisdiction.

- The jurisdiction of the University shall extend to the whole of the State of Andhra Pradesh.

7.

University open to all classes, castes and creeds.

- The University shall be open to persons of either sex and of whatever caste, creed, race or class, and it shall not be lawful for the University to adopt or impose on any person any test whatsoever of religious belief or profession in order to entitle him to be appointed as a teacher of the University or to hold any other office there in or to be admitted as a student in the University or to graduate there at or to enjoy or exercise any privilege thereof;

Provided that nothing in this section shall be deemed to prevent the University from making special provisions for the employment or admission of women, physically handicapped or of persons belonging to the weaker sections of the society and, in particular, of the Scheduled Castes and the Scheduled Tribes;

8.

Officers of the University.

- The following shall be the officers of the University: -

(a)

the Chancellor;

(b)

the Vice-Chancellor;

(c)

the Registrar;

(d)

the Comptroller;

(e)

the Finance Officer;

(f)

the Dean of Student Affairs;

(g)

the Deans of the various faculties;

(h)

the Director of Research;

(i)

the Controller of Examination; and

(j)

such other officers in the service of the University as may be prescribed by the statutes.

9.

The Chancellor.

- The Governor of Andhra Pradesh shall be the Chancellor of the University. He shall, by virtue of his office, be the head of the university, and shall, when present, preside at any convocation of the university. He shall exercise such other powers as may be conferred on him by or under this Act.

10.

The Vice-Chancellor.

(1)

The Vice-Chancellor shall be appointed by the Chancellor in such manner and on such terms and conditions of service as may be prescribed by the Statutes.

(2)

The Vice-Chancellor shall be the principal executive and academic officer of the University and shall exercise general supervision and control over the affairs of the University and give effect to the decisions of all the authorities of the University.

(3)

The Vice-Chancellor may, if he is of opinion that immediate action is necessary on any matter, exercise any power conferred on any authority of the University by or under this Act and shall report to such authority the action taken by him on such matter:

Provided that if the authority concerned is of the opinion that such action ought not to have been taken, it may refer the matter to the Chancellor whose decision thereon shall be final:

Provided further that any person in the service of the University who is aggrieved by the action taken by the Vice-Chancellor under this sub-section shall have the right to appeal against such action to the Executive Council within three months from the date on which decision on such action is communicated to him and thereupon the Executive Council may confirm, modify or reverse the action taken by the Vice-Chancellor.

(4)

The Vice-Chancellor, if he is of the opinion that any decision of any authority of the University is beyond the powers of the authority conferred by the provisions of this Act, the Statutes or the Ordinances or that any decision taken is not in the interest of the University, may ask the authority concerned to review its decision within sixty days of such decision and if the authority refuses to review the decision either in whole or in part or no decision is taken by it within the said period of sixty days, the matter shall be referred to the Chancellor whose decision thereon shall be final.

(5)

The Vice-Chancellor shall exercise such other powers and discharge such other duties as may be prescribed by the Statutes or the Ordinances.

11.

The Deans of Student Affairs.

(1)

The Dean of Student Affairs shall be a whole-time officer and shall be appointed by the Board in the manner as may be prescribed.

(2)

The salary and allowances payable to the Dean of Students Affairs shall be as may be prescribed.

(3)

The Dean of Student Affairs shall discharge the following duties, namely: -

(a)

to make arrangements for the housing of students;

(b)

to arrange a programme of student counselling;

(c)

to arrange for the employment of students in accordance with the plans approved by the Vice-Chancellor;

(d)

to supervise the extracurricular activities and to look after the needs of student;

(e)

to assist in the placement of graduates of the University; and

(f)

to organize and maintain contact with the alumni of the University.

12.

The Registrar.

(1)

The Registrar shall be appointed in such manner as may be prescribed by the Statutes.

(2)

The Registrar shall have the power to enter into agreement, sign on documents and authenticate records on behalf of the University and shall exercise such powers and discharge such duties as may be prescribed by the Statutes.

13.

The Finance Officer.

- The Finance Officer shall be appointed in such manner and shall exercise such powers and discharge such duties as may be prescribed by the Statutes.;

14.

The Librarian.

- The Librarian shall be appointed in such manner and shall exercise such powers and discharge such duties as may be prescribed by the Statutes;

15.

Other Officers.

- The manner of appointment and powers and duties of the other officers of the University shall be prescribed by the Statutes;

16.

Authorities of University.

- The following shall be the authorities of the University, namely, -

(a)

the Executive Council;

(b)

the Academic Council;

(c)

the Board of faculties;

(d)

Finance Committee;

(e)

Planning Board; and

(f)

Such other bodies as may be prescribed.

17.

The Executive Council.

(1)

The Executive Council shall be the principal executive body of the University.

(2)

The constitution of the Executive Council, the term of office of its members and its powers and functions shall be as prescribed by the Statutes.

18.

The Academic Council.

(1)

The Academic Council shall be the principal academic body of the University and shall, subject to the provisions of this Act, the Statutes and the Ordinance co-ordinate and exercise general supervision over the academic policies of the University.

(2)

The Constitution of the Academic Council, the term of office of its members and its powers and functions shall be as prescribed by the Statutes.

19.

The Board of Faculties.

- The constitution, powers and functions of the Board of Faculties shall be as prescribed by the Statutes.

20.

The Finance Committee.

- The constitution, powers and functions of the Finance Committee shall be as prescribed by the Statutes.

21.

The Planning Board.

- The Constitution, powers and functions of the planning Board shall be as prescribed by the Statutes.

22.

Other authorities of the University.

- The constitution, powers and functions of other authorities, as may be declared by the Statutes to be the authorities of the University, shall be as prescribed by the Statutes.

23.

Statutes.

- Subject to the provisions of this Act, the Statutes may provide for all or any of the following matters, namely: -

(a)

the constitution, powers and functions of the authorities, and other bodies of the University, as may be constituted from time to time;

(b)

appointment and continuance in office of the members of the said authorities and bodies, filling up of vacancies of members and all other matters relating to those authorities and other bodies for which it may be necessary or desirable to provide;

(c)

the appointment, powers and duties of the officers of the University and their emoluments;

(d)

the appointment of teachers and other academic staff and other employees of the University, their emoluments and other conditions of service;

(e)

the appointment of teachers, academic staff working in any other University or organisation for specific period for undertaking a joint project;

(f)

the conditions of service of employees including provision for pension, insurance and provident funds, the manner of termination of service and disciplinary action;

(g)

the principles governing the seniority of service of the employees of the University;

(h)

the procedure for arbitration in cases of dispute between employees or students and the University;

(i)

the procedure for appeal to the Executive Council by any employees or student against the action of any officer or authority of the University;

(j)

the conferment of autonomous status on an Institution;

(k)

the establishment and abolition of Department, Centers and Institutions;

(l)

the conferment of honorary degrees;

(m)

the withdrawal of degrees, diplomas, certificates and other academic distinctions;

(n)

the institution of fellowships, scholarships, studentships, medals and prizes;

(o)

the delegation of powers vested in the authorities or officers of the University;

(p)

the maintenance of discipline among the employees and students; and

(q)

all other matters which by this Act are to be or may be provided for by the Statutes.

24.

Statutes how to be made.

(1)

The first Statutes are those set out in the Schedule.

(2)

The Executive Council may, from time to time, make new or additional Statutes or may amend or repeal the Statutes referred to in sub-section (1):

Provided that the Executive Council shall not make, amend or repeal any Statutes affecting the status, powers or constitution of any authority of the University until such authority has been given an opportunity of expressing an opinion in writing on the proposed changes and any opinion so expressed shall be considered by the Executive Council.

Provided further that the Executive Council shall not consider to make, amend or repeal any statute relating to the matters provided under clauses (j) and (k) of section 23 except with the prior approval of the Chancellor.

(3)

Every new Statute or addition to the Statutes or any amendment or repeal of a Statute shall require the assent of the Chancellor who may assent thereto or withhold assent or remit to the Executive Council for re-consideration in the light of observations, if any, made by him.

(4)

A new Statute or a Statute amending or repealing an existing Statute shall have no validity unless it has been assented to by the Chancellor.

(5)

Notwithstanding anything contained in the foregoing sub-sections, the Chancellor may make new or additional Statutes or amend or repeal the Statutes referred to in sub-section (1) during the period of three years immediately after the commencement of this Act:

Provided that the Chancellor may, on the expiry of the said period of three years, make, within one year from the date of such expiry, such detailed Statutes as he may consider necessary and such detailed Statutes shall be laid before the Legislature of the State.

25.

Ordinances.

(1)

The first Ordinances shall be made by the Vice-Chancellor during the period for two years immediately after the commencement of this Act and the Ordinances so made may be amended, repealed or added to at any time by the Executive Council in the manner prescribed by the Statutes.

(2)

Subject to the provisions of this Act and the Statutes, the Ordinances may provide for all or any of the following matters, namely: -

(a)

the admission of students to the University and their enrolment as such;

(b)

the courses of study to be laid down for all degrees, diplomas and certificates of the University;

(c)

the medium of instruction and examination;

(d)

the award of degrees, diplomas, certificates and other academic distinctions, qualifications for the same and the means to be taken relating to the granting and obtaining of the same;

(e)

the fees to be charged (to be revised @ 10% in each year) each year for courses of study in the University and for admission to the examinations, degrees and diplomas of the University;

(f)

the conditions for awards of fellowships, scholarships, studentships, medals and prizes;

(g)

the conduct of examinations, including the term of office and manner of appointment and the duties of examining bodies, examiners and moderators;

(h)

the conditions of residence of the students of the University;

(i)

the special arrangements, if any, which may be made for the residence, discipline and teaching of women students and prescribing of special courses of studies for them;

(j)

the appointment and emoluments of employees other than those for whom provision has been made in the Statutes;

(k)

the establishment of Centres of Studies, Board of faculties, Special Centres, Specialized Laboratories and other Committees;

(l)

the manner of co-operation and collaboration with other Universities, Institutions and other agencies including learned bodies or associations in India or abroad;

(m)

the creation, composition and functions of any other body which is considered necessary for improving the academic life of the University;

(n)

such other terms and conditions of service of teachers and other academic staff as are not prescribed by the Statutes;

(o)

the management of Institutions established by the University;

(p)

setting up of a machinery for redressal of grievances of employees; and

(q)

all other matters which by this Act or the Statutes may be provided for by the Ordinances.

26.

Regulations.

- The authorities of the University may make Regulations, consistent with this Act, the Statutes and the Ordinances for the conduct of their own business and that of the Committees, if any, appointed by them and not provided for by this Act, the Statutes or the Ordinances, in the manner as may be prescribed by the Statutes.

27.

Annual Report.

(1)

The annual report of the University shall be prepared under the direction of the Executive Council which shall include, among other matters, the steps taken by the University towards the fulfillment of its objects and shall be submitted to the Chancellor on or before such date as may be prescribed by the Statutes.

(2)

A copy of the annual report, as prepared under sub-section (1), shall also be submitted to the State Government. The State Government shall, as soon as may be, lay the same before the State Legislature.

28.

Annual Accounts.

(1)

The annual accounts and balance-sheet of the University shall be prepared under the directions of the Executive Council and shall, once at least every year and at intervals of not more than fifteen months, be audited by the Director of State Audit or any Auditor appointed by him or Accountant-General, Audit.

(2)

A copy of the annual accounts together with the audit report thereon along with the observations of the Executive Council, if any, shall be submitted to the Government.

(3)

Any observations made by the Government on the annual accounts shall be brought to the notice of the Executive Council and the views of the Executive Council, if any, on such observations shall be submitted to the Government.

(4)

A copy of the annual accounts together with the audit report submitted to the State Government shall, as soon as may be, laid before the State Legislature.

29.

General and Other Funds.

(1)

The income from the fees and other charges realized by, any contribution and endowment received by, and all grants made to, the University, shall form one general fund to be called the "General Fund of the University" and all money so realized and received shall be credited to it.

(2)

The University may have such other funds and shall maintain such accounts in respect of every fund as may be prescribed.

(3)

All monies credited to the general Fund of the University shall be deposited in such Banks or invested in such manner as the University may, with the previous approval of the Government, decide.

30.

Borrowing of money.

- The University may accept money from the Government of India, the State Government, the University Grants Commission and other agencies and also borrow money from a Bank or a Corporation, for the purposes of the University:

Provided that where the University intends to borrow money from a Bank or Corporation or both exceeding an amount of fifty thousand rupees at a time or in the aggregate, it shall obtain the prior written approval of the Government therefor.

31.

Conditions of service of employees.

(1)

Every employee of the University shall be appointed under a written contract which shall be lodged with the University and a copy of which shall be furnished to the employee concerned;

(2)

Any dispute arising out of the contract between the University and any employee shall, at the request of the employee, be referred to an Arbitration Tribunal consisting of one member appointed by the Executive Council, one member nominated by the employee and an umpire appointed by the Chancellor;

(3)

The decision of the Tribunal shall be final and no suit shall lie in any civil court in respect of the matters decided by the Tribunal;

32.

Procedure of appeal and arbitration in disciplinary cases against students.

(1)

Any student or candidate for an examination whose name has been removed from the rolls of the University by the orders or resolution of the Vice-Chancellor, Discipline Committee or Examination Committee, as the case may be, and who has been debarred from appearing at the examination of the University for more than one year, may, within ten days of the date of receipt of such orders or copy of such resolution by him, appeal to the Executive Council and the Executive Council may confirm, modify or reverse the decision of the Vice-Chancellor or the Committee, as the case may be.

(2)

Any dispute arising out of any disciplinary action taken by the University against a student shall, at the request of such student, be referred to an Arbitration Tribunal and the provisions of sub-sections (2) and (3) of section 31 shall, as far as may be, apply to a reference made under this sub-section.

33.

Right to Appeal.

- Every employee or student of the University or Institution maintained by the University shall, notwithstanding anything contained in this Act, have a right to appeal within such time as may be prescribed by the Statutes, to the Executive Council against the decision of any officer or authority of the University or of Institution, as the case may be, and thereupon, the Executive Council may confirm, modify or reverse the decision appealed against.

34.

Provident and pension funds.

(1)

The University shall constitute, for the benefit of its employees in such manner and subject to such conditions as may be prescribed by the Statutes, such provident or pension fund or provide such insurance schemes as it may deem fit.

(2)

Where such provident fund or pension fund has been so constituted, the Government may declare that the provision of the Provident Fund Act, 1925, shall apply to such fund, as if it were a Government Provident Fund.

35.

Disputes as to constitution of University Authorities and bodies.

- If any question arises whether any person has been duly elected or appointed as, or is entitled to be, a member of any authority or other body of the University, the matter shall be referred to the Chancellor whose decision thereon shall be final.

36.

Constitution of Committees.

- Where any authority of the University is given power by this Act or the Statutes to appoint Committees, such committee shall, save as otherwise provided, consist of members of the authority concerned and of such other person, if any, as the authority in each case may think fit.

37.

Filling of Casual vacancies.

- All casual vacancies among the members (other than ex-officio members) of any authority or other body of the University shall be filled, as soon as may be, by the person or body or other body who appoints, elects or co-opts the member whose place has become vacant and any person appointed, elected or co-opted to a casual vacancy shall be member of such authority or body for the residue of the term for which the person whose place he fills would have been a member.

38.

Proceedings of University authorities or bodies not validated by vacancies.

- No Act or proceedings of any authority or other body of the University shall be invalid merely by reason of the existence of a vacancy or vacancies among its members or of any defect or irregularity in the appointment of a member of any authority or other body of the University of any defect or irregularity in such act or proceeding not effecting the merits of the case.

39.

Protection of action taken in good faith.

- No suit or other legal proceedings shall lie against any officer or employee of the University for anything which is in good faith done or intended to be done in pursuance of any of the provisions of this Act, the Statutes or the Ordinances.

40.

Mode of proof of University records.

- Copy of any receipt, application, notice, order, proceeding or resolution of any authority or Committee of the University or other documents in possession of the University, or any entry in any register duly maintained by the University, if certified by the Registrar, shall be received as prime facie evidence of such receipt, application, notice, order, proceeding, resolution or documents or the existence of entry in the register and shall be admitted as evidence of the matters and transactions therein where the original thereof would, if produced, have been admissible in evidence, notwithstanding anything contained in the Indian Evidence Act, 1872 or in any other law for the time being in force.

41.

Power to remove Difficulties.

(1)

If any difficulty arises in giving effect to the provisions of this Act, the State Government may, by notification published in the Andhra Pradesh Gazette, make such provisions, not inconsistent with the provisions of this Act, as appear to it to be necessary or expedient for removing the difficulty:

Provided that no such notification shall be made under this section after the expiry of three years from the date of commencement of this Act.

(2)

Every notification made under this section shall be laid, as soon as may be after it is made, before the State Legislature.

42.

Transitional Provisions.

- Notwithstanding anything contained in this Act and the Statutes: -

(a)

the Governor of Andhra Pradesh shall be the Chancellor of the University;

(b)

the first Vice-Chancellor shall be appointed by the Chancellor and the said officer shall hold office for a term of three years;

(c)

the first Registrar and the first Finance Officer shall be appointed by the Vice-Chancellor and each of the said officers shall hold office for a term of three years;

(d)

the first Executive Council shall consist of not more than twenty members and they shall hold office for a term of three years;

(e)

the First Academic Council shall consist of not more than twenty-one members, and shall hold office for a term of three years;

Provided that if any vacancy occurs in the above offices or authorities, the same shall be filled by appointment or nomination, as the case may be, by the Vice-Chancellor, and the person so appointed or nominated shall hold office for so long as the officer or member in whose place he is appointed or nominated would have held that office, if such vacancy had not occurred.

43.

Statutes, Ordinances Regulations to be published in the Andhra Pradesh Gazette and to be laid before State Legislature.

(1)

Every Statute, Ordinance or Regulation made under this Act shall be published in the Andhra Pradesh Gazette.

(2)

Every Statute, Ordinance or Regulation made under this Act shall be laid, as soon as may be after it is made, before both houses of the State Legislature, while it is in session, for a total period of fourteen days which may be comprised in one session or in two or more successive sessions, and if, before the expiry of the session immediately following the session or the successive sessions aforesaid, both Houses agree in making any modification in the Statute, Ordinance or Regulation or both Houses agree that the Statute, Ordinance or Regulation should not be made, the Statute, Ordinance or Regulation shall thereafter have effect only in such modified form or be of no effect, as the case may be; so, however, that any such modification or annulment shall be without prejudice to the validity of anything previously done under that Statute, Ordinance or Regulation.

(3)

The power to make Statutes, Ordinances or Regulations shall include the power to give retrospective effect from a date not earlier than the date of commencement of this Act, to the Statute, Ordinance or Regulation or any of them but no retrospective effect shall be given to any Statute, Ordinance or Regulation so as to prejudicially affect the interests of any person to whom such Statute, Ordinance or Regulation may be applicable.

The Schedule

(See section 24)

The Statutes of the University

1. The Chancellor. - The Governor of Andhra Pradesh shall be the Chancellor of the University. He shall, by virtue of his

office, be the head of the University, and shall, when present, preside at any convocation of the University. He shall exercise such other powers as may be conferred on him by or under this Act.

2. The Vice-Chancellor. - (1) The first Vice-Chancellor shall be appointed by the Chancellor and the said officer shall hold office for a term of three years;

(2)

The Vice-Chancellor shall be a whole-time salaried officer of the University.

(3)

The Vice-Chancellor shall hold office for a term of three years from the date on which he enters upon his office, and shall, on the expiration of his term of office, be eligible for re-appointment to that office for a second term:

Provided that the Chancellor may direct the Vice-Chancellor after his term has expired, to continue in office for such period, not exceeding a total period of one year as may be specified by him or till his successor is appointed and enters upon his office, whichever is earlier.

(4)

Notwithstanding anything contained in clause (3), a person appointed as Vice-chancellor shall, if he attains the age of seventy years during the term of his office or any extension thereof, retire from office.

(5)

The emoluments and other conditions of service of the Vice-Chancellor shall be as follows: -

(i)

The Vice-Chancellor shall be paid a monthly salary and allowances other than house rent allowance at the rates fixed by the State Government from time to time:

Provided that if he assumes office after retiring on superannuation from a pensionable post, his salary and allowances shall be reduced by the gross amount of his pension prior to commutation or the payment of pension shall be held in abeyance until he relinquishes office:

Provided further that if he assumes office after retiring on superannuation from a non-pensionable post, his salary and allowances shall be reduced by the gross amount equivalent of retirement benefits availed of by him on superannuation:

Provided also that where such employee had been a member of any pension scheme, the University shall make the necessary contribution to such scheme.

(ii)

The Vice-Chancellor shall be entitled to travelling allowance at such rates as may be fixed by the Executive Council.

(iii)

The Vice-Chancellor shall be entitled to leave on full pay at the rate of thirty days in a calendar year and the leave shall be credited to his account in advance in two half yearly installments of fifteen days each on the 1st day of January and July every year:

Provided that if the Vice-Chancellor assumes or relinquishes charge of the office of the Vice-Chancellor during the currency of a half year, the leave shall be credited proportionately at the rate of two and-a-half days for each completed month of service.

(iv)

In addition to the leave referred to in sub-clause (iii), the Vice-Chancellor shall also be entitled to half pay leave at the rate of twenty days for each completed year of service. This half pay leave may also be availed of as commuted leave on full pay on medical certificate. When commuted leave is availed, twice the amount of half pay leave shall be debited against half pay leave due.

(v)

The Vice-Chancellor shall be entitled to such terminal benefits and allowances as may be fixed by the Executive Council with the approval of the Chancellor from time to time.

(6)

If the office of the Vice-Chancellor becomes vacant due to death, resignation or otherwise, or if he is unable to perform his duties due to ill health or any other cause, the Pro-Vice-Chancellor is not available, the senior-most professor shall perform the duties of the Vice-Chancellor until a new Vice-Chancellor assumes office or until the existing Vice-Chancellor attends to the duties of his office, as the case may be.

3. Powers and duties of the Vice-Chancellor. - (1) The Vice-Chancellor shall be ex-officio chairman of the Executive Council, the Academic Council, and Finance Committee and shall in the absence of the Chancellor preside at the

convocations held for conferring degrees;

(2)

The Vice-Chancellor shall be entitled to be present at, and address, any meeting of any authority or other body of the University, but shall not be entitled to vote thereat unless he is a member of such authority or body;

(3)

It shall be the duty of the Vice-Chancellor to see that this Act, the Statutes, the Ordinances and the Regulations are duly observed, and he shall have all the powers necessary to ensure such observance;

(4)

The Vice-Chancellor shall exercise control over the affairs of the University and shall give effect to the decisions of all the authorities of the University;

(5)

The Vice-Chancellor shall have all the powers necessary for the proper maintenance of discipline in the University and he may delegate any such powers to such persons or person as he deems fit;

(6)

The Vice-Chancellor shall convene or cause to be convened the meeting of the Executive Council, the Academic Council and the Finance Committee;

4. Pro-Vice-Chancellor. - (1) The Pro-Vice-Chancellor shall be appointed by the Executive Council on the recommendation of the Vice-Chancellor:

Provided that where the recommendation of the Vice-Chancellor is not accepted by the Executive Council, the matter shall be referred to the Chancellor who may either appoint the person recommended by the Vice-Chancellor or ask the Vice-Chancellor to recommend another person to the Executive Council:

Provided further that the Executive Council may, on the recommendation of the Vice-Chancellor, appoint a Professor to discharge the duties of the Pro-Vice-Chancellor in addition to his own duties as a Professor.

(2)

The term of Office of the Pro-Vice-Chancellor shall be such as may be decided by the Executive Council but it shall not in any case exceed three years or until the expiration of the term of office of the Vice-Chancellor, whichever is earlier:

Provided that the Pro-Vice-Chancellor whose term of office has expired shall be eligible for re-appointment:

Provided further that, in any case, the Pro-Vice-Chancellor shall retire on attaining the age of Sixty-five years.

(3)

The emoluments and other terms and conditions of service of the Pro-Vice-Chancellor shall be such as may be prescribed by the Executive Council from time to time.

(4)

The Pro-Vice-Chancellor shall assist the Vice-Chancellor in respect of such matters as may be specified by the Vice-Chancellor in this behalf, from time to time, and shall also exercise such powers and perform such duties as may be assigned or delegated to him by the Vice-Chancellor.

5. Registrar. - (1) The Registrar shall be appointed by the Executive Council on the recommendation of a Selection Committee constituted for the purpose and shall be a whole-time salaried officer of the University.

(2)

He shall be appointed for a term of three years and shall be eligible for re-appointment.

(3)

The emoluments and other terms and conditions of service of the Registrar shall be such as may be prescribed by the Executive Council from time to time:

Provided that the Registrar shall retire on attaining the age of sixty two years.

(4)

When the Office of the Registrar is vacant or when the Registrar is, by reasons of illness, absence, or any other cause, unable to perform the duties of his office, the duties of the office shall be performed by such person as the Vice-Chancellor may appoint for the purpose.

(5)

(a)

the Registrar shall have power to take disciplinary action against such of the employees, other than teachers and academic staff, as may be specified in the Ordinance and to suspend them pending inquiry, to administer warnings to

them or to impose on them the penalty of censure or withholding of increment:

Provided that no such penalty shall be imposed unless the person concerned has been given reasonable opportunity of showing cause against the action proposed to be taken in regard to him.

(b)

An appeal shall lie to the Vice-Chancellor against any order of the Registrar imposing any of the penalties specified in sub-clause (a).

(c)

In a case where the inquiry discloses that a punishment beyond the power of the Registrar is called for, the Registrar shall, upon conclusion of the inquiry, make a report to the Vice-Chancellor along with his recommendations:

Provided that an appeal shall lie to the Executive Council against an order of the Vice-Chancellor imposing any penalty.

(6)

The Registrar shall be ex-officio secretary of the Executive Council, the Academic Council and the Boards of faculties, but shall not be deemed to be a member of any of these authorities.

(7)

It shall be the duty of the Registrar: -

(a)

to be the custodian of the records, the common seal and such other property of the University as the Executive Council shall commit to his charge;

(b)

to issue all notices convening meetings of the Executive Council, the Academic council, the Boards of faculties and of any Committees appointed by those authorities;

(c)

to keep the minutes of all the meeting of the Executive Council, the Academic Council and of any Committees appointed by those authorities;

(d)

to conduct the official correspondence of the Executive Council and Academic Council;

(e)

to arrange for and superintend the examinations of the University in accordance with the manner prescribed by the Ordinances;

(f)

to represent the University in suits or proceedings by or against the University, sign powers-of-attorney and verify pleadings or depute his representative for the purpose; and

(g)

to perform such other duties as may be specified in the Statutes, the Ordinances or the Regulations or as may be required, from time to time, by the Executive Council or the Vice-Chancellor.

6. The Finance Officer. - (1) The Finance Officer shall be appointed by the Executive Council on the recommendations of Selection Committee constituted for the purpose and he shall be a whole-time salaried officer of the University.

(2)

He shall be appointed for a term of three years and shall be eligible for re-appointment.

(3)

The emoluments and other terms and conditions of service of the Finance Officer shall be such as may be prescribed by the Executive council from time to time:

Provided that a Finance Officer shall retire on attaining the age of sixty two years:

(4)

When the office of the Finance Officer is vacant or when the Finance Officer is, by reasons of illness, absence, or any other cause, unable to perform the duties of his office, the duties of the office shall be performed by such person as the Vice-Chancellor may appoint for the purpose.

(5)

The Finance Officer shall be ex-officio Secretary of the Finance Committee, but shall not be deemed to be a Member of such Committee.

(6)

The Finance Officer shall:-

(a)

Exercise general supervision over the funds of the University and shall advise it as regards its financial policy; and

(b)

Perform such other financial functions as may be assigned to him by the Executive Council or as may be prescribed by the Statutes or the Ordinances.

(7)

Subject to the control of the Executive Council, the Finance Officer shall:-

(a)

Maintain the accounts of the University and also advise the University on all matters relating to income and expenditure.

(b)

hold and manage the property and investments of the University including trust and endowed property;

(c)

ensure that the limits fixed by the Executive Council for recurring and non-recurring expenditure for a year are not exceeded and that all moneys are expended for the purpose for which they are granted or allotted;

(d)

be responsible for the preparation of annual accounts and the budget of the University and for their presentation to the Executive Council;

(e)

keep a constant watch on the state of the cash and bank balances and on the state of investment;

(f)

watch the progress of the collection of revenue and advise on the methods of collection employed;

(g)

ensure that the registers of buildings, land, furniture and equipment are maintained up-to-date and that stock-checking is conducted, of equipment and other consumable materials in all offices, Special Centres, Specialized Laboratories and Institutions maintained by the University;

(h)

bring to the notice of the Vice-Chancellor unauthorized expenditure and other financial irregularities and suggest disciplinary action against persons at fault; and

(i)

call for from any office, Centre, Laboratory or Institution maintained by the University any information or returns that he may consider necessary for the performance of his duties.

(8)

Any receipt given by the Finance Officer or the person or persons duly authorized in this behalf by the Executive Council for any money payable to the University shall be sufficient discharge for payment of such money.

7. Heads of Departments. - (a) In the case of Departments which have more than one Professor, the Head of the Department shall be appointed by the Executive Council on the recommendation of the Vice-Chancellor from among the Professors;

(b)

In the case of Department where there is no Professor or there is only one Professor, the Executive Council shall have the option to appoint, on the recommendation of the Vice-Chancellor, either the Professor or a Associate Professor as the Head of the Department:

Provided that it shall be open to a Professor or Associate Professor to decline the offer of appointment as the Head of the Department.

(c)

A person appointed as the Head of the Department shall hold office as such for a period of three years and shall be eligible for re-appointment;

(d)

A Head of a Department may resign his office at any time during his tenure of office;

(e)

A Head of a Department shall perform such duties as may be prescribed by the Ordinances.

8. Proctor. - (1) The Proctor shall be appointed by the Executive Council on the recommendation of the Vice-Chancellor and shall exercise such powers and discharge such duties as may be assigned to him by the Vice-Chancellor.

(2)

The Proctor shall hold office for a term of two years and shall be eligible for re-appointment.

9. Librarian. - (1) The Librarian shall be appointed by the Executive Council on the recommendation of the Selection Committee constituted for the purpose and he shall be a whole-time salaried officer of the University.

(2)

The Librarian shall exercise such powers and discharge such duties and shall have such emoluments, terms and conditions of service as may be prescribed by the Executive Council.

10. The Executive Council. - (1) The Executive Council shall consist of the following members, namely, -

(a)

the Vice-Chancellor;

(b)

the Secretary to Government, Energy Department;

(c)

the Secretary to Government, Finance Department;

(d)

the Secretary to Government, Higher Education Department;

(e)

Vice-Chancellor & Managing Director, New and Renewable Energy Development Corporation of Andhra Pradesh;

(f)

Managing Director, Transmission Corporation of Andhra Pradesh & Managing Director, Generation Corporation of Andhra Pradesh;

(g)

One person to be nominated by the Chancellor from the Board of members of an eminent Research organisation in the field of Energy;

(h)

One person who is in the opinion of the Chancellor a distinguished Renewable Energy expert, nominated by the Chancellor;

(i)

Three persons from the Academic Council to be nominated by the Chancellor;

(j)

Five industry persons selected by the Chancellor from among the industrialists in Energy sector etc., based on the quantum of technical and financial support provided by the industry members.

(2)

All the members of the Executive Council, other than the Vice-Chancellor and Pro-Vice Chancellor, shall hold office for a term of three years.

(3)

Five members of the Executive Council shall form a quorum for a meeting of the Executive Council.

11. Powers and functions of the Executive Council. - (1) The Executive council shall have the power of management and administration of the revenue and property of the University and the conduct of all administrative affairs of the University not otherwise provided for;

(2)

Subject to the provisions of this Act, the Statutes and the Ordinances, the Executive Council shall, in addition to all other powers vested in it, have the following powers, namely, -

(a)

to create teaching and other academic posts, to determine the number and emoluments of such posts and to define the duties and conditions of service of Professors, Associate Professor, Assistant Professor and other academic staff and Principals of Institutions maintained by the University:

Provided that no action shall be taken by the Executive Council in respect of the number, qualifications and the emoluments of teachers and academic staff otherwise than after consideration of the recommendations of the Academic

Council.

(b)

to appoint such Professors, Associate Professor, Assistant Professors and other academic staff, as may be necessary, and Principals of the Institutions maintained by the University on the recommendation of the Selection Committee constituted for the purpose and to fill up temporary vacancies therein;

(c)

to create administrative, ministerial and other necessary posts and to make appointments thereto in the manner prescribed by the Ordinances;

(d)

To grant leave of absence to any officer of the University, other than the Chancellor and the Vice-Chancellor, and to make necessary arrangements for the performance of the functions of such officer during his absence;

(e)

To regulate and enforce discipline among employees in accordance with the Statutes and the Ordinances;

(f)

To manage and regulate the finances, accounts, investments, property, business and all other administrative affairs of the University, and for that purpose to appoint such agents as it may think fit;

(g)

To fix limits on the total recurring and the total non-recurring expenditure for a year on the recommendations of the Finance Committee;

(h)

to invest any money belonging to the University, including any unapplied income, in such stocks, funds, share or securities, from time to time as it may think fit or in the purchase of immovable property in India, with the like powers of varying such investment from time to time;

(i)

to transfer or accept transfers of any movable or immovable property on behalf of the University;

(j)

to provide buildings, premises, furniture and apparatus and other means needed for carrying on the work of the University;

(k)

to enter into, vary, carry out and cancel contracts on behalf of the University;

(l)

to entertain, adjudicate upon, and if thought fit, to redress any grievances of the employees and students of the University who may, for any reason, feel aggrieved;

(m)

to appoint examiners and moderators and, if necessary, to remove them, and to fix their fees, emoluments and travelling and other allowances, after consulting the Academic council;

(n)

to select a common seal for the University and provide for the custody and use of such seal;

(o)

to make such special arrangements as may be necessary for the residence and discipline of women students;

(p)

to delegate any of its powers to the Vice-Chancellor, the Pro-Vice-Chancellor, the Deans, the Registrar or the Finance Officer or such other employee or authority of the University or to a committee appointed by it as it may deem fit;

(q)

to institute fellowships, scholarships, studentships, medals and prizes;

(r)

to provide for inviting Writer in Residence and determine the terms and conditions of such invitations;

(s)

to provide for the appointment of Visiting Professors, Emeritus Professors, Consultants and Scholars and determine the terms and conditions of such appointments; and

(t)

to exercise such other powers and discharge such other duties as may be conferred or imposed on it by the Act, or the Statutes.

12. The Academic Council. - (1) The Academic Council shall consist of the following members namely, -

(a)

the Vice-Chancellor of the University;

(b)

Vice Chairman & Managing Director, New and Renewable Energy Development Corporation of Andhra Pradesh;

(c)

the Directors of Research and Extension;

(d)

the Deans of the various faculties;

(e)

the Dean of Student Affairs;

(f)

the University Heads of Department;

(g)

the Associate Directors of Research;

(h)

the Controller of Examinations;

(i)

two members of the Executive Council nominated by the vice-Chancellor;

(j)

four persons having special knowledge or practical experience in different aspects of Energy with specialized focus on Renewable Energy nominated by the Vice-Chancellor.

(2)

All members of the Academic council, other than the ex-officio members, shall hold office for a term of three years.

(3)

Ten members of the Academic Council shall form quorum for a meeting of the Academic Council.

13. Powers and functions of the Academic Council. - (1) Subject to the provisions of this Act, the Statutes and the Ordinances, the Academic Council shall be in-charge of the academic affairs of the University and supervise, direct and control, and be responsible for, the maintenance of standards of instruction, education and examinations and other matters connected with the obtaining of degrees, diplomas and certificates and shall exercise such other duties as may be laid down by or under this Act.

(2)

In particular and without prejudice to the generality of the forgoing power, the Academic Council shall be entitled to,-

(a)

advise the Vice-Chancellor and the Executive Council on all academic matters, including the control and management of the libraries;

(b)

make recommendations to the Executive Council, -

(i)

for the institution of the professorships, associate professorships assistant professorships, teacherships and other teaching posts and matters connected therewith;

(ii)

regarding the post-graduate teaching, research and extension;

(c)

formulate, modify, revise or rescind schemes in connection with the constitution or reconstitution of departments of teaching, research and extension; and make regulations,-

(i)

regarding the admission of students to the University;

(ii)

regarding the examinations and the conditions on which students shall be admitted thereto;

(a.iii) relating to courses of study of degrees, diplomas and certificates.

(a.iv) regarding the academic functioning of the University, discipline, residence, award of fellowships and studentships, fees, concessions, corporate life and attendance.

(d)

to consider general academic matters either on its own initiative or on a reference of Board of faculties or by the Executive Council and to take appropriate action thereon.

14. Board of Faculties. - (1) The University shall have the Faculties of Technology, Management and such other Faculties as may be prescribed.

(2)

Each faculty shall comprise such departments with such assignment of subjects of study as may be prescribed.

(3)

Each Department shall consist of the following members, namely, -

(a)

Teachers of the Department;

(b)

Persons conducting research in the Department;

(c)

Dean of the faculty;

(d)

Honorary Professors, if any, attached to the Department; and

(e)

Such other persons as may be members of the Department in accordance with the provisions of the Ordinances.

(4)

there shall be a Board for each Faculty, the constitution and powers of which shall be prescribed.

(5)

there shall be a Dean for each faculty of study who shall be appointed in such manner and for such period, as may be prescribed.

(6)

the Dean shall be the Chairman of the Board of the Faculty and be responsible for the faithful observance of the statutes and regulations relating to the Faculty and for the organization and conduct of the teaching, research and extension work of the departments comprised therein.

(7)

each department shall have a head, whose appointment, powers and duties shall be as prescribed, and who shall be responsible to the Dean for the proper organization and working of the department.

(8)

the constitution of the Board of faculties and the term of office of its members shall be prescribed by the Ordinances.

(9)

subject to the overall control and supervision of the Academic Council, the functions of the Board of faculties shall be to approve subjects for research for various degrees and other requirements of research degrees and to recommend to the concerned School Board or Executive Council in the manner prescribed by the Ordinances:-

(a)

courses of studies and appointment of examiners for post-graduate courses, but excluding research degrees;

(b)

appointment of supervisors of research; and

(c)

measures for the improvement of the standard of post-graduate teaching and research:

Provided that the above functions of a Board of faculties shall, during the period of three years immediately after the commencement of the Act, be performed by the Department.

15. Planning Board. - (a) the Planning Board shall be the Principal Planning body of the University and shall be responsible for monitoring the development of the University on the lines indicated in the objects of the University.

(b)

the Constitution of Planning Board and its powers and functions shall be such as may be prescribed by the statutes.

16. Finance Committee. - (1) The Finance Committee shall consist of the following members, namely, -

(a)

the Vice-Chancellor;

(b)

the Comptroller;

(c)

two members chosen by the Executive Council from among its members.

(2)

Four members of Finance Committee shall form a quorum for a meeting of the Finance Committee.

(3)

All the members of the Finance Committee, other than ex-officio members, shall hold office for a term of three years.

(4)

The Finance Committee shall meet at least twice every year to examine the accounts and to scrutinize proposals for expenditure.

(a)

All proposals relating to creation of posts, and those items which have not been included in the Budget, should be examined by the Finance Committee for consideration and comments and thereafter submitted to the Executive Council.

(b)

The annual accounts and the financial estimates of the University prepared by the Finance Officer shall be laid before the Finance Committee for consideration and comments and thereafter submitted to the Executive Council for approval.

(c)

The Finance Committee shall recommend limits for them, total recurring expenditure and the total non-recurring expenditure for the year, based on the income and resources of the University (which, in the case of productive works, may include the proceeds of loans).

(d)

The Finance Committee shall have the following powers and duties; namely,-

(i)

to examine the accounts of the University and its annual budget estimates and to advise the Executive Council in respect thereof;

(ii)

to review the financial position of the University from time to time; and

(iii)

to make recommendations to the Executive Council on all proposals involving expenditure, for which no provision or inadequate provision has been made in the budget, or in excess of the budget provision.

17. Selection Committees. - (1) There shall be constituted Selection Committees for making recommendations to the Executive Council for appointment to the posts of Professors, Associate Professor, Assistant Professor, Registrar, Finance Officer, Librarian and Principals of the institutions maintained by the university.

(2)

The Selection Committee for appointment to the posts specified in column (1) of the Table below shall consist of the Vice-Chancellor, Pro-Vice-Chancellor, and the persons specified in the corresponding entry in column (2) of the said Table:

Table

(1)

(2)

Professor

(i) The Dean of the faculty concerned;

(ii) The Head of the

Department concerned if he is a professor;

(iii) three persons not in the service of university nominated by the Executive Council, out of a panel of names recommended by the Academic Council for their special knowledge of, or interest in, the subject with which the Professor is concerned.

Associate Professor/Assistant Professor

(i) the Dean of the faculty concerned;

(ii) the Head of the Department concerned;

(iii) two persons not in the service of the University, nominated by the Executive Council, out of a panel of names recommended by the Academic Council for their special knowledge of, or interest in the, subject with which the Associate Professor or Assistant Professor is concerned.

Registrar/Finance Officer

(i) two member of the Executive Council nominated by it.

(ii) one person not in the service of the University nominated by the Executive Council.

Librarian

(i) two persons not in the service of the University, who have special knowledge of the subject of the Library Science/Library Administration nominated by the Executive Council;

(ii) one person not in the service of the University, nominated by the Executive Council.

Head of the Institutions maintained by the University

(i) three persons not in the service of the University of whom two shall be nominated by the Executive Council and one by the Academic Council for their special knowledge of, or interest in, a subject in which instruction is being provided by the institution.

Note. - (1) Where the appointment is being made for an inter-disciplinary project, the head of the project shall be deemed to be the Head of the Department concerned.

(2)

The professors to be nominated shall be Professor concerned with the subject for which the selection is being made and that the Vice-Chancellor shall consult the Head of the Department and the Dean of the faculty before nominating the Professor.

(3)

The Vice-Chancellor or in his absence, the Pro-Vice-Chancellor shall preside the meetings of a Selection Committee: Provided that the meetings of the Selection Committee shall be fixed after prior consultation with and subject to the convenience of, the persons nominated by the Executive Council under cause (2):

Provided further that the proceedings of Selection Committee shall not be valid unless where the number of the persons nominated by the Executive Council is three in all, at least two of them attend the meeting.

(4)

The meeting of a Selection Committee shall be convened by the Vice-Chancellor or in his absence by the Pro-Vice-Chancellor.

(5)

The procedure to be followed by a Selection Committee in making recommendations shall be laid down in the

Ordinances.

(6)

No person shall participate in the meetings of the Selection Committee for any appointment if he or his near relative is candidate for that appointment.

(7)

No teacher holding a post lower in rank than the one to which appointment is to be made, shall be a member of Selection Committee.

(8)

If the Executive Council is unable to accept the recommendations made by a Selection Committee, it shall record its reasons and submit the case to the Chancellor for final orders.

(9)

Appointments to temporary posts shall be made in the manner indicated below:-

(i)

if the temporary vacancy is for duration longer than one academic session, it shall be filled on the advice of the Selection Committee in accordance with the procedure indicated in the foregoing clauses:

Provided that if the Vice-Chancellor is satisfied that in the interest of work it is necessary to fill the vacancy, the appointment may be made purely on a temporary basis by a local Selection Committee referred to in sub-clause (ii) for a period not exceeding six months.

(ii)

if the temporary vacancy is for a period less than a year, an appointment to such vacancy shall be made on the recommendation of a local Selection Committee consisting of the Dean of the faculty concerned, the Head of the Department and a nominee of the Vice-Chancellor:

Provided that if the same person holds the offices of the Dean and the Head of the Department, the Selection Committee may contain two nominees of the Vice-Chancellor:

Provided further that in case sudden vacancies of teaching posts caused by death or any other reason, the Dean may, in consultation with the Head of the Department concerned make a temporary appointment for a month and report to the Vice-Chancellor and the Registrar about such appointment.

(iii)

no teacher appointed temporarily shall, if he is not recommended by a regular Selection Committee for appointment under the Statutes, be continued in service on such temporary employment, unless he is subsequently selected by a local Selection Committee or a regular Selection Committee, for a temporary or permanent appointment, as the case may be.

18. Special mode of appointment. - (1) Notwithstanding anything contained in Statute 19, the Executive Council may invite a person of high academic distinction and professional attainments to accept a post of Professor or Associate Professor or any other academic post in the University, as the case may be, on such terms and conditions as it deems fit, and on the person agreeing to do so, appoint him to the post.

(2)

The Executive Council may appoint a teacher or any other academic staff working in any other University or organization for undertaking a joint project in accordance with the manner laid down in the Ordinance.

19. Appointment for a fixed tenure. - The Executive Council may appoint a person selected in accordance with the procedure laid down in Statute 17 for a fixed tenure on such terms and conditions as it deems fit.

20. Committees. - (1) Any authority of the University may appoint as many standing or special Committees as it may deem fit, and may appoint to such Committees persons who are not members of such authority.

(2)

Any such Committee appointed under clause (1) may deal with any subject delegated to it subject to subsequent confirmation by the authority appointing.

21. Terms and conditions of service and code of conduct of the teachers, etc. - (a) All the teachers and other academic staff of the University shall, in the absence of any agreement to the contrary, be governed by the terms and conditions of service and code of conduct as specified in the notification of the University Grants Commission (UGC) and as amended from time to time and also as specified in the Statutes, Ordinances and the Regulations of the University.

(b)

Every teacher and member of the academic staff of the University shall be appointed by a written contract, the form of which shall be prescribed by the Ordinances.

(c)

A copy of every contract referred to in clause (b) shall be deposited with the Registrar.

(d)

Each faculty shall comprise such departments with such assignment of subjects of study as may be prescribed.

(e)

There shall be a Board for each faculty, the constitution and powers of which shall be prescribed.

(f)

There shall be a Dean for various faculties who shall be appointed in such manner and for such period, as may be prescribed.

(g)

The Dean shall be the Chairman of the Board of Faculty and be responsible for the faithful observance of the statutes and regulations relating to the Faculty and for the organization and conduct of the teaching, research and extension work of the departments comprised therein.

(h)

Each department shall have a head, whose appointment, powers and duties shall be as prescribed, and who shall be responsible to the Dean for the proper organization and working of the department.

(i)

The age of superannuation for all the persons who are holding teaching positions on regular employment against sanctioned post shall be 65 years and thereafter no extension of service shall be given. However, it may be open to the University to re-employ a superannuated teacher up to the age of 70 years.

22. Terms and conditions of service and code of conduct of other employees. - All the employees of the University, other than the teachers and other academic staff of the University, shall, in the absence of any contract to the contrary, be governed by the terms and conditions of service and code of conduct as are specified in the Statutes, the Ordinances and the Regulations.

23. Research and Extension. - (a) The University may establish and maintain one or more Energy field experiment stations for research, both fundamental and applied in all faculties. The Executive Council shall appoint, in the manner prescribed, a person who had expertise in renewable energy field as the Director of Energy Experiment Stations. The Director shall institute, guide and coordinate all energy research with focus on renewable energy and be responsible for the efficient working of such stations;

(b)

The University may, at any time, with the approval of the Government close down, either permanently or temporarily any of the renewable energy experiment stations specified in sub-clause (a);

(c)

The Government shall endeavour to secure proper co-ordination between the departments of the Government and the University in the conduct of research and extension work and may tender necessary advice to the Executive Council in that regard.

24. Seniority list. - (a) whenever, in accordance with the Statutes, any person is to hold an Office or be a member of an authority of the University by rotation according to seniority, such seniority shall be determined according to the length of continuous service of such person in his grade, and in accordance with such other principles as the Executive Council may, from time to time, frame.

(b)

It shall be the duty of the Registrar to prepare and maintain, in respect of each class of persons to whom the provisions of these Statutes apply, a complete and up-to-date seniority list in accordance with the provision of clause (1).

(c)

If two or more persons have equal length of continuous service in a particular grade or the relative seniority of any person or persons is otherwise in doubt, the Registrar may, on his own motion and shall, at the request of any such person, submit the matter to the Executive Council whose decision thereon shall be final.

25. Removal of employees of the University. - (1) Where there is an allegation of misconduct against teacher, a member of the academic staff or other employee of the University, the Vice-Chancellor, in the case of the teacher or member of

the academic staff, and the authority competent to appoint (hereafter referred to as the appointing authority) in the case of other employee, may, by order in writing, place such teacher, member of the academic staff or other employee, as the case may be, under suspension and shall forthwith report to the Executive Council the circumstances in which the order was made:

Provided that Executive Council may, if it is of the opinion that the circumstances of the case do not warrant the suspension of the teacher or a member of the academic staff or other employee, revoke such order.

(2)

Notwithstanding anything contained in the terms of the contract of appointment or of any other terms and conditions of service of the employees, the Executive Council in respect of teachers and other academic staff, and the appointing authority, in respect of other employees, shall have the power to remove a teacher or a member of the academic staff or as the case may be or other employee on ground of misconduct.

(3)

Save as aforesaid, the Executive Council or as the case may be, the appointing authority, shall not be entitled to remove any teacher, member of the academic staff or other employee except for good and sufficient reason and after giving three months notice or on payment of three months salary in lieu thereof.

(4)

No teacher, member of the academic staff or other employee shall be removed under clause (2) or clause (3) unless he has been given a reasonable opportunity of showing cause against the action proposed to be taken in regard to him.

(5)

The removal of a teacher, member of the academic staff or other employee shall take effect from the date on which the order of removal is made:

Provided that where the teacher, member of the academic staff or other employee is under suspension at the time of his removal, such removal shall take effect from the date on which he was placed under suspension.

(6)

Notwithstanding anything contained in the foregoing provisions of this Statute, a teacher, member of the academic staff or other employee may resign:-

(a)

if he is a permanent employee, only after giving three months' notice in writing to the Executive Council or the appointing authority, as the case may be, or by paying three months' salary in lieu thereof.

(b)

if he is not a permanent employee, only after giving one months' notice in writing to the Executive Council or, as the case may be, the appointing authority or by paying one months' salary in lieu thereof:

Provided that such resignation shall take effect only on and from the date on which the resignation is accepted by the Executive Council or the appointing authority, as the case may be.

26. Honorary Degrees. - (1) The Executive Council may, on the recommendation of the Academic Council and by a resolution passed by a majority of not less than two-thirds of the members present and voting, make proposals to the Chancellor for the conferment of honorary degrees:

(2)

The Executive Council may, by a resolution passed by a majority of not less than two-thirds of the members present and voting, withdraw, with the previous sanction of the Chancellor, any honorary degree conferred by the University.

27. Withdrawal of Degrees etc. - The Executive Council may, by a special resolution passed by a majority of not less than two-thirds of the members present and voting, withdraw any degree or academic distinction conferred on, or any certificate or diploma granted to, any person by the University for a good and sufficient reason:

Provided that no such resolution shall be passed until a notice in writing has been given to that person calling upon him to show cause within such time as may be specified in the notice why such a resolution should not be passed and until his objection, if any, and any evidence he may produce in support of them, have been considered by the Executive Council.

28. Maintenance of discipline among students of the University. - (1) All powers relating to discipline and disciplinary action in relation to students of the University shall vest in the Vice-Chancellor.

(2)

The Vice-Chancellor may delegate all or any of his powers as he deems proper to a Proctor and to such other officers

as he may specify in this behalf.

(3)

Without prejudice to the generality of his powers relating to the maintenance of discipline and taking such action, as may seem to him appropriate for the maintenance of discipline, the Vice-Chancellor may, in exercise of his powers, by order, direct that any student or students be expelled, or rusticated, for a specified period, or be not admitted to a course or courses of study in an institution or a Department of the University for stated period, or be punished with fine for an amount to be specified in the order, or be debarred from taking an examination or examinations conducted by the University, Institution or Department or a faculty for one or more years, or that the results of the student or students concerned in the examination or examinations in which he or they have appeared be cancelled.

(4)

The Heads of Institutions, Deans of faculties and Heads of teaching Departments in the University shall have the authority to exercise all such disciplinary powers over the students in their respective Institutions, faculties and teaching Departments in the University as may be necessary for the proper conduct of such Institutions, faculties and teaching Department in the University.

(5)

Without prejudice to the powers of the Vice-Chancellor, and other persons specified in clauses (3) and (4), detailed rules of discipline and proper conduct shall be made by the University. The principals of Institutions, Deans of faculties of Studies and heads of teaching Department in the University may also make the supplementary rules as they deem necessary for the aforesaid purposes.

29. Convocations. - Convocations of the University for the conferring of degrees or for other purposes shall be held in such manner as may be prescribed by the Ordinances.

30. Acting Chairman of meetings. - Where no provision is made for a President or Chairman to preside over a meeting of any authority of the University or any Committee of such authority or when the President or Chairman so provided for absent, the members present shall elect one from among themselves to preside at such meeting.

31. Resignation. - Any member, other than an ex-officio member of the Executive Council, the Academic council or any other authority of the University or any Committee of such authority may resign by letter addressed to the Registrar and the resignation shall take effect as soon as such letter is received by the Registrar.

32. Disqualifications. - (1) A person shall be disqualified for being chosen as, and for being, a member of any of the authorities of the University:-

(i)

if he is of unsound mind;

(ii)

if he is an un-discharged insolvent;

(iii)

if he has been convicted by a court of law of an offence involving moral turpitude and sentenced in respect thereof to imprisonment for not less than six months.

(2)

If any question arises as to whether a person is or had been subjected to any of the disqualifications mentioned in clause (1), the question shall be referred to the Executive Council and its decision shall be final and no suit or other proceeding shall lie in any civil court against such decision.

33. Residence condition for membership and office. - Notwithstanding anything contained in the Statutes, a person who is not ordinarily resident in India shall not be eligible to be an officer of the University or a member of any authority of the University.

34. Membership of authorities by virtue of membership of other bodies. - Notwithstanding anything contained in the Statutes, a person who holds any post in the University or is a member of any authority or body of the University in his capacity as a member of a particular authority or body or as the holder of a particular appointment shall hold such office or membership only for so long as he continues to be a member of that particular authority or body or the holder of that particular of that particular appointment, as the case may be.

35. Ordinances how made. - (1) The first Ordinance made under sub-section (1) of section 25 may be amended, repealed or added to at any time by the Executive Council.

(2)

No Ordinances in respect of the matters enumerated in section 25, other than the one enumerated in clause (n) of sub-section (2) thereof, shall be made by the Executive Council unless a draft of such Ordinance has been proposed by the Academic Council.

(3)

The Executive Council shall not have power to amend any draft of any Ordinance proposed by the Academic council under clause (2) but may reject the proposal or return the draft to the Academic council for re-consideration, either in whole or in part together with any amendment, which the Executive Council may suggest.

(4)

Where the Executive Council has rejected or returned the draft of an Ordinance proposed by the Academic Council, the Academic Council may consider the question afresh and in case the original draft is reaffirmed by more than half of the total number of members of the Academic council, and a majority of not less than two-thirds of the members present and voting, the draft may be sent back to the Executive Council which shall either adopt it or refer it to the Vice-Chancellor whose decision shall be final.

(5)

Every Ordinance made by the Executive Council shall come into effect immediately.

(6)

Every Ordinance made by the Executive Council shall be submitted to the Vice-Chancellor within two weeks from the date of its adoption. The Vice-Chancellor shall have the power to direct the Executive Council within four weeks of the receipt of the Ordinance to suspend the operation for any such Ordinance and he shall, as soon as possible, inform the Executive Council about his objection to the proposed Ordinance. The Vice-Chancellor may, after receiving the comments of the Executive Council, either withdraw the order suspending the Ordinance or disallow the Ordinance and his decision thereon shall be final.

36. Regulations. - (1) The authorities of the University may make regulations consistent with this Act, the Statutes and the Ordinances for the following matters, namely,-

(a)

laying down the procedure to be observed at their meetings and the number of members required to form a quorum;

(b)

providing for all matters which are required by this Act, the Statutes or the Ordinance to be prescribed by regulations;

(c)

providing for all other matters solely concerning such authorities or committees appointed by them and not provided for by the Act, the Statutes or the Ordinances.

(2)

Every authority of the University shall make regulations providing for the giving of notice to the members of such authority of the dates of meetings and of the business to be considered at meetings and for the keeping of a record of the proceedings of the meetings.

(3)

The Executive Council may direct the amendment in such manner as it may specify of any regulation made under the Statutes or the annulment of any such regulation.

37. Delegation of powers. - Subject to the provisions of this Act and the Statutes, any officer or authority of the University may delegate his or its powers to any other officer or authority or person under his or its respective control and subject to the condition that overall responsibility for the exercise of the powers so delegated shall continue to vest in the officer or authority delegating such powers.

38. The University shall have presently the following Departments, Offices and Centers, namely -
Departments:

(1)

Department of Wind Energy;

(2)

Department of Solar Energy;

(3)

Department of Thermal Energy;

(4)

Department of Sustainability & Environment;

(5)

Department of Transmission & Distribution;

(6)

Department of Energy Storage;

(7)

Department of Geothermal & (Ocean Thermal Energy Conversion) OTEC;

(8)

Department of Bio-energy and Engineering.

Offices:

(1)

Office of Incubation and Entrepreneurship;

(2)

Office of Research;

(3)

Office of Industry, Academic Linkage;

(4)

Skill Development Centre.

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